

Illustration by RAJ VERMA

a touch cautious, largely kept itself to questioning its intent and timing, not content, citing the upcoming urban body polls as a motivation. State chief Amit Chavda also said the drafters ignored over a lakh suggestions and objections. Only Imran Khedawala, its lone Muslim MLA, addressed the annihilation of religious freedoms. "I oppose the bill on behalf of the entire Muslim community of Gujarat. It will separate Muslims from Sharia Law and make them 'atheist'," he said. Mujahid Nafees, convenor, Minority Coordination Committee, promised a legal challenge.

THE UNIFORMITY ARGUMENT

In the assembly, chief minister Bhupendra Patel had statesman-like words, saying the bill is a guarantee for "equal justice to citizens, equal rights for women". He found less than full endorsement from rights advocates, though. Activist Zakia Soman, founder, Bharatiya Muslim Mahila Andolan, concedes the Gujarat UCC empowers Muslim women against polygamy, as also in inheritance and marriage age. But she called out compulsory registration of live-ins as violative of the constitutional right to liberty for everyone. Bandish Soparkar, Gujarat High Court lawyer, says its procedural rigmarole lends itself to a worse outcome: being used as a tool for fear, harassment or deterrence. An activist cites another area of overreach, literally: the law extends to Gujarat residents even when they are outside, potentially obliging someone studying abroad to register, for instance, a relationship locally.

Soman, who spearheaded the legal battle against triple talaq, draws attention to another anomaly that belies the bill's 'progressive' framing: a proposed tweak to the Gujarat Registration of Marriages Act, 2006, that will end up pushing women back into the draconian fold of parental consent. "The two legislations are contradictory in the context of empowering women," Soman points out. While breaking religion's stranglehold on gender and individual rights, she asks whether the UCC is not simply replacing it with another form of omnipotent authority: the State. "Unfortunately, the political rhetoric around the bill makes one wonder," she says.

Takeaways

- **Gujarat becomes the second Indian state to pass a uniform civil code**
- **Its UCC brings under a single legal framework everything from live-ins to marriage, inheritance et al**
- **Govt frames it as a law enabling "equal justice"**
- **Critics say it liberates women from religious law, only to institute Big State**

CONTINUED RUPTURE

A committee set up in 2025, headed by former Supreme Court judge Ranjana Desai, conferred with legal experts, civil society groups and stakeholders across Gujarat for a year to evolve the draft—the bill was tabled on March 18, a day after its report came in.

Justice Desai had also chaired the panel for Uttarakhand's UCC. The similarities between the two laws—particularly on contentious provisions such as state oversight on live-ins—reflect this continuity. Ruptures, too, may come from the legal route. ■